

inalienable for as long a period as the law will permit, the Court would no doubt execute the intention by settling the heir-looms, and inserting a limitation, by which the absolute interest in the first tenant in tail should by his death under 21, or by his death under 21 without issue, be carried over to the person next entitled in remainder (*a*). But if heir-looms be assigned or bequeathed to trustees, not upon trust simply for the persons entitled under the limitations of the real estates, which, notwithstanding the words "so far as the rules of law and equity will permit," would vest them absolutely in the first tenant in tail who came into being, but upon trust, "as far as the rules of law and equity will permit," for the persons successively entitled to the *actual freehold* (in the sense of the *freehold in possession*), with a proviso that no *child* of a person made tenant for life shall take absolutely unless he attained 21, here, though the trust be executed, and not executory, the absolute vesting is coupled with the *possession*, and is therefore suspended until the death of the tenant for life, and will then vest in the child who, after his death, shall first fulfil the requisite of being tenant in tail in possession and attaining the age of 21 years (*b*).

In one case a testator gave certain jewels to his nephew John, "to be held as heir-looms by him, and by his eldest son on his decease, and to descend to the eldest son of such eldest son, and so on to the eldest son of his descendants, as far as the rules of law and equity will permit." John [*124] died in 1866, leaving *an eldest son, the plaintiff (born in testator's lifetime), and the Court declared that the jewels were in trust for John for life, and on his death for plaintiff for his life, and on his death for his eldest son, to be vested at 21, and if he died in the lifetime of plaintiff, or after his death but under 21, leaving an eldest son born before the death of plaintiff, then in trust for such

(*a*) See the observations of Lord Loughborough in *Foley v. Burnell*, 1 B. C. C. 284, and of Lord Thurlow in *Vaughan v. Burslem*, 3 B. C. C. p. 106; and of V. C. Wood in *Scarsdale v. Curzon*, 1 J. & H. 40; *Sackville-*

West v. Viscount Holmesdale, 4 L. R. H. L. 543.

(*b*) *Scarsdale v. Curzon*, 1 J. & H. 40; *Christie v. Gosling*, 1 L. R. H. L. 279; *Harrington v. Harrington*, 3 L. R. Ch. App. 564; 5 L. R. H. L. 87.